Baljinder Singh vs State Nct Of Delhi on 28 February, 2025

Author: Chandra Dhari Singh

Bench: Chandra Dhari Singh

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 882/2025
BALJINDER SINGH
Through:

versus

STATE NCT OF DELHI
Through:

CORAM:
HON'BLE MR. JUSTICE CHANDRA DHARI SINGH
ORDER

% 28.02.2025 CRL.M.A. 6591/2025 (Exemption)

1. Exemption allowed subject to just exceptions.

2. The application stands disposed of

1. The instant bail application under Section 482 of the Bharatiya Nagarik Suraksha Sanhita, 2023 has been filed on behalf of the petitioner/applicant seeking grant of anticipatory bail in FIR No.04/2025 dated 19th January, 2025, for the offences punishable under Section 318(4) of the Bharatiya Nyaya Sanhita, 2023 (hereinafter "BNS"), registered at Police Station - Cyber Police Station, Rohini, Delhi.

2. The brief facts of the instant application are that a complaint was This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 01/03/2025 at 05:59:15 received by the investigating agency regarding online fraud of Rs. 4 Lakhs, wherein, the complainant alleged that while surfing Instagram, he found a page namely Planet Guide Overseas where there were more than 9000 followers. The said page was giving assurance to send the clients abroad and the complainant expressed his willingness to go to Australia. Pursuant to the same, the complainant shared his mobile number on the page and thereafter he received a call from Planet Guide Overseas

demanding RS. 13 Lakhs for Visa and other expenses. Rs. 4 Lakhs were demanded as advance and the complainant paid Rs. 3,90,000/- thereto through UPI. Subsequently, the complainant received his Visa and Air Tickets, however, upon reaching the airport, he came to know that the Visa and the tickets were fake. Thereafter, the complainant was issued another Visa and Air Tickets, but to utter shock of the complainant, the same were also found to be fake. Following the same, the complainant asked Planet Guide Overseas to return his money, but to no avail and hence, the aforesaid FIR was registered.

3. During the investigation, it was revealed that that the account in which the money was transferred, was registered in the name of Planet Guide Overseas owned by Gurvinder Singh, brother of the applicant.

4. Accordingly, the applicant herein field an anticipatory bail application before the learned ASJ, however, the same was dismissed vide order dated 24th February, 2025.

5. Being aggrieved by the abovesaid order, the applicant has filed the instant application seeking setting aside of the same and grant of anticipatory bail.

6. Ms. Nandita Rao, learned senior counsel appearing on behalf of the applicant submitted that the applicant is running a business of travel agency This is a digitally signed order.

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7. It is further submitted that all the allegations made in the instant FIR are false and fabricated qua the applicant and he has not committed any offence. It is further submitted that the applicant is co-operating with the police investigation and he has thrice joined the investigation whenever called by the police.

8. Learned senior counsel submitted that there is no criminal history of the applicant, he has clean antecedents, and that the allegations made against the applicant are for the offence punishable under Section 318(4) of the BNS for which the maximum punishment is 7 years. Learned senior counsel further, on instructions, undertakes that the applicant shall abide by all the terms and conditions imposed by this Court while granting anticipatory bail.

9. In view of the foregoing submissions and the aforesaid facts, it is prayed that the applicant be granted anticipatory bail.

10. Heard.

11. Issue notice.

12. Per contra, learned APP for the State, appearing on advance notice, accepted notice and vehemently opposed the instant bail application. He This is a digitally signed order.

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13. Learned APP also submitted that the allegations made against the applicant are punishable under Section 318(4) of the BNS for which maximum punishment is 7 years. It is further submitted that during interrogation, the applicant disclosed that the alleged SIM Card is in his name which was given by him to his brother, who is using it continuously. Therefore, it is prayed that the instant application may be dismissed.

14. Heard learned counsel for the parties and perused the material available on record.

15. Upon perusal of the contents made in the instant application, it is observed that the specific case of the applicant is that he is co-operating with the investigating agency and has appeared 3 times in the past before the investigating agency.

16. Moreover, at this moment, the learned APP has not contradicted the fact that there are no criminal antecedents of the applicant or any money has been received by the applicant, and the only contention made today is that the applicant has received the money by the proprietorship firm, i.e., Planet Guide Overseas.

17. Taking into consideration the undertaking given by learned senior counsel for the applicant, on instructions, to the effect that the applicant shall co-operate with the investigating agency and the only allegation against him is punishable under Section 318(4) of the BNS for which the maximum 7 years as well as the law laid down by the Hon'ble Supreme Court, this Court is inclined to grant interim anticipatory bail to the applicant.

18. Accordingly, it is directed that in the event of arrest, the applicant be This is a digitally signed order.

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a) he shall surrender his passport, if any, to the Investigating Officer and shall under no circumstances leave India without prior permission of the Court concerned;

b) he shall cooperate in the investigation and appear before the Investigating Officer/Court concerned of the case as and when required;

c) he shall not directly or indirectly make any inducement, threat or promise to any person acquainted with the facts of the case;

d) he shall provide his mobile number(s) to the Investigating Officer/Court concerned and keep it operational at all times;

e) In case of change of residential address and/or mobile number, the same shall be intimated to the Investigating Officer/Court concerned by way of an affidavit.

19. List on 25th April, 2025.

20. Meanwhile, the respondent-State is directed to file the status report within two weeks.

FEBRUARY 28, 2025
Rt/ryp C

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